

# EDRi Papers: An Introduction to Data Protection

## Summary

The article overall goes into higher level detail with many of the EU's data protection laws under the GDPR. This makes sense because the individual sections are written by various European countries' privacy agencies and sort. In short, the article covers how user's data must be protected when they are using platforms and how these platforms must have privacy settings enabled by default.

### Strengths

- Clear Presentation of Key Topics
- Brief Analogies / Topic Statements
- Protects Users
- MLATs Streamline Suggestion

### Weaknesses

- More Initial Work for Developers
- Loopholes with Data Protection by Default
- TOS Loopholes

## Comments On Strengths & Weaknesses

For starters, the article does a good job at presenting the information in a way that is easily digestible and easy to follow regardless of technical background. They did this by clearing indicating overarching topic names by section, including short and precise quotes, and small anecdotes in some sections. Additionally the GDPR policies mentioned were explained quite clearly and demonstrated their reason for why they are present. For example, one of the GDPR laws mentioned was the consent to data collection law which requires users to agree to their data being collected after having access to a TOS agreement of sorts. However there are different loopholes around data collection consent such as UX designs with cookie preferences or just simply having long TOS filled with technical jargon which prompts users to scroll past and click accept.

Another section that I thought was particularly well worded was the anonymity section talking about the "anonymity set", which essentially is how unique is a given data point. The example the text gave was a data point being attributed to a Male vs the point being attributed to a Dutch middle-aged bearded male near Cambridge. The first data point does not narrow down one's search scope whereas the second data point could narrow it down to only a select few individuals despite not having the user's explicit name and/or address (or other unique personal identifiers). The article also briefly covered the use of data collected in law enforcement and provided an idea that the process to get the rights to legally get access to the data (from the government side) can often be long and should be more streamlined.

To briefly expand upon the other weaknesses not covered in the above paragraphs, there are a few downsides with implementing some of these data privacy constraints. For starters, probably one of the bigger downsides is the extra work for developers to implement different

levels of privacy, creating anonymity within the databases etc etc. While this is a minor argument against such laws it is one used nonetheless. Additionally, there are other loopholes with data protection by default where for Meta products there is a lot of different menus and buttons needed to press in order to have access to some of the data that is collected on you. There's a lot of different UX designs done (as mentioned before) designed to have users give their data more easily and reduce the likelihood of one changing these preferences.